

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT SUBMITTING TO THE QUALIFIED ELECTORS OF MONTANA AN
5 AMENDMENT TO ARTICLE IV, SECTION 2, OF THE MONTANA CONSTITUTION TO PROVIDE THAT ONLY
6 A CITIZEN OF THE UNITED STATES IS A QUALIFIED ELECTOR; AND PROVIDING AN EFFECTIVE DATE."

7
8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

9
10 **Section 1.** Article IV, section 2, of The Constitution of the State of Montana is amended to read:

11 **"Section 2. Qualified elector.** ~~Any~~ Only a citizen of the United States 18 years of age or older who
12 meets the registration and residence requirements provided by law is a qualified elector unless he is serving a
13 sentence for a felony in a penal institution or is of unsound mind, as determined by a court."

14
15 NEW SECTION. **Section 2. Two-thirds vote required.** Because [section 1] is a legislative proposal
16 to amend the constitution, Article XIV, section 8, of the Montana constitution requires an affirmative roll call vote
17 of two-thirds of all the members of the legislature, whether one or more bodies, for passage.

18
19 NEW SECTION. **Section 3. Effective date.** [This act] is effective on approval by the electorate.

20
21 NEW SECTION. **Section 4. Submission to electorate.** [This act] shall be submitted to the qualified
22 electors of Montana at the general election to be held in November 2026 by printing on the ballot the full title of
23 [this act] and the following:

24 ☐ YES on Constitutional Amendment ____.

25 ☐ NO on Constitutional Amendment ____.

26 - END -